

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 22-29

MVM LOGISTICS

VS.

MSC MEDITERRANEAN SHIPPING COMPANY (USA)
INC.

JOINT STATUS REPORT

Pursuant to the Administrative Law Judge’s Initial Order of October 27, 2022 (FMC Dkt. # 4), Complainant MVM LOGISTICS (“MVM” or “Complainant”) and Respondent MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC. (“MSC USA” or “Respondent”) (jointly the “Parties”) hereby submit their joint status report.

Consumer Affairs and Dispute Resolution Services

The Parties have consulted with the Commission’s Office of Consumer Affairs and Dispute Resolution Services (CADRS) as to whether the matter may be resolved through mediation. After an initial consultation, the parties are weighing whether mediation with CADRS would be helpful in resolving this dispute.

Initial Disclosures

Complainant MVM LOGISTICS has not served its Initial Disclosures. Respondent MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC. has served its initial disclosures.

Proposed Scheduling Order

Complainant has only recently appointed counsel who has filed a Notice of appearance on December 5, 2022 (FMC Dkt. # 7). Complainants' counsel informed Respondent's counsel of his intention to move for leave to amend Complainant's Complaint. With that in mind, the Parties propose the following Scheduling Order subject to seeking an amendment of same if MVM Logistics amends its Complaint:

- January 9, 2023 – Parties serve initial discovery requests.
- February 8, 2022 – Responses to initial discovery.
- February 20 to April 20, 2022 – Depositions to be completed.
- The Parties will take no more than five (5) depositions per side.
- March 20, 2023 – Last day to serve discovery.
- April 20, 2023 – Close of discovery.

Respectfully submitted,

/s/Christopher John Yemenidjian

Christopher John Yemenidjian

Yemenidjian Law Firm

3300 West Rosecrans Avenue

Suite 205

Hawthorne, CA 90250

(310) 532-3020

Attorneys for Complainant

/s/Wook Chung

/s/Kaspar Kielland

Wook Chung

Kaspar Kielland

**Montgomery McCracken Walker &
Rhoads LLP**

427 Madison Avenue, 24th Floor

New York, New York 10022

(212) 201-1931 / (212) 867-9500

Attorneys for Respondent

Dated: December 12, 2022

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 12st day of December 2022, the foregoing

Notice of Appearance was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
Presiding Administrative Law Judge Linda S. Harris Crovella
judges@fmc.gov

/s/Kaspar Kielland